

## 23CHCV01335 23CHCV01335

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-07-27

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Case Number: 23CHCV01335 Hearing Date: July 27, 2026 Dept: F43

Dept. F43

Hearing Date: 07-27-26

Case # 23CHCV01335, Griffiths,  
et al. v. American Honda Motor Company, Inc.

Trial Date: N/A

MOTION FOR ATTORNEY'S  
FEES, COSTS, AND EXPENSES

MOVING PARTIES: Plaintiffs David Griffiths and Carolyn  
Griffiths

RESPONDING PARTY: Defendant American Honda Motor Company, Inc.

RELIEF REQUESTED

Order granting Plaintiffs \$41,853.50 in attorney  
fees and \$4,188.44 in costs and expenses.

RULING: Motion is granted for \$41,186 in attorney fees  
and \$4,188.44 in costs and expenses.

SUMMARY OF ACTION

On May 5, 2023, plaintiffs David Griffiths

and Carolyn Griffiths (Plaintiffs) filed this lemon law matter against defendant American Honda Motor Company, Inc. (Defendant), concerning defects in their 2020 Honda Pilot. Plaintiffs assert five causes of action for violations of the Song-Beverly Consumer Warranty Act. Defendant filed an answer on July 25, 2023.

The parties settled the matter on March 27, 2025, when Plaintiffs executed a Section 998 Offer to Compromise. (Declaration of Ashley B. Sura ¶ 10, Exh. 2.) Pursuant to the agreement, the parties stipulated to Plaintiffs being the prevailing party for the purpose of a memorandum of costs and a noticed motion for attorney fees, costs, and expenses under Civil Code section 1794, subdivision (d).

On June 3, 2026, Plaintiffs filed the instant motion for attorney fees, costs, and expenses accrued in litigating this matter. Defendant filed a late opposition on July 17, 2026.[1] Plaintiffs replied on July 20, 2026.

## ANALYSIS

### A. Awarding Attorney Fees

A prevailing party is entitled to recover its attorneys' fees when authorized by contract, statute, or law. (See Code Civ. Proc., § 1033.5, subd. (a)(10); Civ. Code, § 1717, subd. (a).)

"A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney's fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit." (Bowman v. City of Berkeley (2005) 131 Cal.App.4th 173, 178.) If a buyer prevails in a Song-Beverly action, then the buyer is allowed to recover attorney fees. (Civ. Code, § 1794, subd. (d).)

Because Plaintiffs are buyers and this matter settled in Plaintiffs' favor, Plaintiffs are the prevailing parties pursuant to Civil Code section 1794, subdivision (d).

#### 1. Hourly Rates

Plaintiffs request hourly rates ranging from \$440 to \$540 for their counsel of record, Consumer Law Experts, PC and a \$215 hourly rate for

paralegals. (Sura Decl. ¶¶ 11-17.)

“The reasonable hourly rate is that prevailing in the community for similar work.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) The moving party bears the initial burden of establishing the prevailing market “through its own affidavits.” (MBNA Am. Bank, N.A. v. Gorman (2006) 147 Cal.App.4th Supp. 1, 13.) Once the moving party presents competent evidence of prevailing rates, the burden shifts to the opposing party. The opposing party may present rulings which concern hourly rates for comparable work from the relevant legal market. (Bronshteyn v. Dept. of Consumer Affairs (2025) 114 Cal.App.5th 537, 543, 546-547; Baer v. Tedder (2025) 115 Cal.App.5th 1139, 1160-1162.) The court is not bound by prior fee determinations. The court must engage in an objective analysis “to determine the prevailing rate in the community for comparable professional legal services[.]” (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 156, citation omitted.) The court may “consider the attorney’s skill as reflected in the quality of the work, as well as the attorney’s reputation and status.” (MBNA Am. Bank, N.A., supra, 147 Cal.App.4th Supp. at p. 13.)

Plaintiffs present the declaration of attorney Ashley B. Sura, a billing statement, and eight court rulings where courts have approved similar hourly rates. (Sura Decl., Exhs. 3-11.) Ms. Sura’s declaration discusses each attorney’s current position, their qualifications and experience, and changes in their hourly rates. (Id. ¶¶ 11-16.) Plaintiffs also reference the Laffey Matrix. (Motion at pp. 6:23-7:5, fn. 3.)

In opposition, Defendant contends the hourly rates are inflated and unsupported, and that the case was overstaffed. (Opposition at p. 7:5-23.) According to Defendant, defense firms usually charge \$250 per hour in warranty defense litigation. (Declaration of Kevin D. Zipser ¶ 8.) Defendant also claims Ms. Sura’s statements about what other “experts” charge are conclusory and unsupported.

In response, Plaintiffs note Defendant fails to support its claims with admissible evidence.

(Reply at pp. 3:7-5:6.)

After reviewing the supporting declarations, court rulings, each attorney's experience and qualifications, and the Laffey Matrix, the court finds the requested hourly rates are reasonable.

Attorney Name

Requested Hourly Rate

Approved Hourly Rate

Ashley B. Sura

\$450 (May 2026)

\$450 (May 2026)

Jordan G. Cohen

\$510 (Aug. 2022)

\$540 (Feb. 2025)

\$510 (Aug. 2022)

\$540 (Feb. 2025)

Bobby C. Walker

\$440

\$440

Andrew Dickson

\$440

\$440

Diana Rivero

\$525

\$525

Yuebai Ruby Gao

\$460

\$460

Paralegal Name

Requested Hourly Rate

Approved Hourly Rate

David Gomez

\$215

\$215

Katherine Carreño

\$215

\$215

Robert Aguilar

\$215

\$215

Jose Reyes

\$215

\$215

Isabel Garcia

\$215

\$215

Andrea Montenegro

\$215

\$215

The court notes several conflicts between the hourly rates in the billing statement and the hourly rates in the Sura declaration. In order to reconcile the two documents, the court applies the rates listed in the Sura declaration in its final calculation.

## 2. Billing Entries

Plaintiffs request fees for 89.4 hours of attorney work and paralegal work, including 9.1 hours for the instant motion.

The Song-Beverly Consumer Act only entitles Plaintiffs to attorney fees for "actual time expended."

(Civ. Code, § 1794, subd. (d).)

This means that analysis as to whether the fees and costs sought are reasonable under the circumstances is required.

(Levy v. Toyota Motor Sales, USA, Inc. (1992) 4 Cal.App.4th 807,

816.) "A prevailing buyer has the burden

of 'showing that the fees incurred were 'allowable,' were reasonably necessary

to the conduct of the litigation, and were 'reasonable in amount.'" (Hanna

v. Mercedes-Benz USA, LLC (2019) 36 Cal.App.5th 493, 507, citations

omitted.) A verified fee bill is prima

facie evidence that the services listed were necessarily incurred. (Hadley v. Krepel (1985) 167

Cal.App.3d 677, 682.) If a fee request

is opposed, "[g]eneral arguments that fees claimed are excessive, duplicative,

or unrelated do not suffice." (Premier Med. Mgmt. Sys. v. Cal. Ins.

Guarantee Ass'n (2008) 163 Cal.App.4th 550, 564.) Once an objection to the fees has been

raised, then plaintiff's counsel bears the burden of showing that the fees were reasonably necessary, and the court has the discretion to reduce fees awarded. (*En Palm, LLC v Teitler Family Trust* (2008) 162 Cal.App.4th 770, 775.)

In determining the reasonableness of fees, courts look to the factors from *Church of Scientology v. Wollersheim* (1996) 42 Cal.App.4th 628, disapproved on other grounds by *Equilon Enters. v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 68 fn.5.

The factors from *Wollersheim* are (1) the amount of money involved in the litigation; (2) the nature of the litigation and its difficulty and the intricacies and importance of the litigation; (3) the skill required and employed in handling the litigation, the necessity for skilled legal training and ability in trying the case, and counsel's education and experience in the particular type of work involved; (4) the attention given to the case; (5) the success of the attorneys efforts; and (6) the time consumed by the litigation. (*Id.*)

Defendant challenges 51 entries in the billing statement:

15.0 hours of paralegal billing for

clerical tasks involving template documents and 8.3 hours drafting "meet and

confer" letters and block billing various unrelated tasks. (Opposition at pp. 7:25-10:4.) Overall, Defendant asks the court to reduce

the fee amount to \$9,910 at most. Defendant

claims a spreadsheet setting forth its objections and positions to various

entries is attached to the Kevin D. Zipser declaration as Exhibit C. (Zipser Decl. ¶ 7.) No exhibits were included with the Zipser

declaration.

In response, Plaintiffs note the missing Exhibit C and

assert the time incurred drafting the meet and confer letters was not exaggerated, unreasonable, or duplicative.

According to Plaintiffs, Defendant fails to cite any legal authority to

support its reduction or demonstrating the use of templates. Defendant's arguments as to the paralegal tasks and entries fail because Defendant does not challenge specific entries and does not identify any block billing.

The court has reviewed the billing entries and reduces

the paralegal billing by 1.9 hours for administrative tasks such as filing and electronically serving documents. (See *Sura Decl.*, Exh.

11 [David Gomez entries on May 1, 2025, May 23, 2025, August 29, 2025, December 18, 2025, December 22, 2025, February 4, 2026, March 6, 2026, March 20, 2026, April 7, 2026, ]; Exh. 11 [Robert Aguilar entries on May 5, 2023, May 17, 2023, May 19, 2023, April 23, 2024, August 19, 2024]; Exh. 11 [Katherine Carreño entries on November 12, 2024, November 21, 2024, December 17, 2024].)

As the for Defendant's other stated issues, the court finds no issues with the “meet and confer” billing entries, considering many of the entries do not exceed two hours except those entries pertaining to supplemental discovery responses. Otherwise, Defendant fails to carry its burden of identifying specific billing entries it seeks to strike in whole or in part.

Attorney Name

Requested Hours

Approved Hours

Approved

Rates

Total

Ashley B. Sura

4.6[2]

4.6

\$450 (May 2026)

\$2,070

Jordan G. Cohen

0.9 (Aug. 2022)

1.7 (Feb. 2025)



0.9 (Aug. 2022)

1.7 (Feb. 2025)

\$510 (Aug. 2022)

\$540 (Feb. 2025)

\$1,377

Bobby C. Walker

1.8

1.8

\$440

\$792

Andrew Dickson

0.8

0.8

\$440

\$352

Diana Rivero

62.5

62.5

\$525

\$32,812.50

Yuebai Ruby Gao

2.1

2.1

\$460

\$966

Total:

\$38,369.50

Paralegal Name

Requested Hours

Approved Hours

Approved

Rates

Total

David Gomez

6.4

5.5

\$215

\$1,182.50

Katherine Carreño

1.2

0.9

\$215

\$193.50

Robert Aguilar

4.8

4.1

\$215

\$881.50

Jose Reyes

0.9

0.9

\$215

\$193.50

Isabel Garcia

0.9

0.9

\$215

\$193.50

Andrea Montenegro

0.8

0.8

\$215

\$172

Total:

\$2,816.50

Total approved attorney and paralegal fees: \$41,186

B. Costs  
and Expenses

Plaintiffs seek \$4,188.44 in costs and expenses incurred  
in this matter. (Sura Decl., Exh. 12.)

“A prevailing party who claims costs must serve  
and file a memorandum of costs within 15 days after the date of service of the  
notice of entry of judgment or dismissal by the clerk[.] The memorandum of costs must be verified by a  
statement of the party, attorney, or agent that to the best of his or her  
knowledge the items of cost are correct and were necessarily incurred in the  
case.” (Cal. Rules of Court, rule  
3.1700(a)(1).) Under the law, the court  
presumes a verified memorandum of costs is correct. However, a party may contest the costs that a  
prevailing party seeks. (Code Civ.  
Proc., § 1034 subd. (a).) The  
challenging party has the burden of demonstrating that those costs are  
unreasonable or unnecessary. (Adams  
v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486.)

Defendant states it will litigate the costs and expenses  
separately, but no motion to tax costs has been filed. (Opposition at p. 11:12-13.) A motion to strike or tax costs must be filed  
and served at least 15 days after service of the memorandum of costs. (Cal. Rules of Court, rule  
3.1700(b)(1).) If the memorandum is  
served electronically, the period is extended pursuant to Code of Civil  
Procedure section 1010.6(a)(3). (Id.) Plaintiffs electronically served their

memorandum of costs on Defendant on April 6, 2026. (4/6/26 Memorandum of Costs.) Plaintiffs electronically served a corrected

version the next day. (4/7/26 Notice of

ERRATA Re: Plaintiffs' Memorandum of Costs.)

Thus, the deadline for Defendant to file a motion to tax costs expired over two months ago.

Because Defendant does not dispute any specific costs, the court grants Plaintiffs' request for \$4,188.44 in costs and expenses.

#### CONCLUSION and ORDER

Motion is granted in the reduced amount of \$45,374.44: \$41,186 in attorney fees and \$4,188.44 in costs and expenses.

Plaintiffs to give notice.

[1] Oppositions must be filed and

served at least nine court days before the motion hearing. (Code Civ. Proc., § 1005, subd. (b).) Defendant served the motion on July 14, 2026.

[2] Hours related to reviewing the

opposition, preparing a reply, and attending the motion hearing remotely. (Supplemental Declaration of Ashley B. Sura ¶¶ 5-7.)